

3rd Amended Financial Statement

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE 6.06(5)

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any question/s.

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify)

Filed on behalf of:

Full name: Stephen Christopher Cooke

Client ID _____

File number (P)NCC3896/2023

Filed at **NEWCASTLE**

Filed on _____

Court location _____

Next Court date (if known) _____

This form is to be used by a party to a financial proceeding, such as property settlement, maintenance, child support or financial enforcement.

Part A About you

1	What is your family name as used now?	Given names?
	Cooke	Stephen Christopher
	213 Morgan Street	
	Merewether	State NSW Postcode 2291

Please tick as applicable – only one box should be selected

AFFIDAVIT – for financial proceedings:

I **swear* / affirm*** that:

- (a) I have read Rule 6.06 and I am aware that by law I have an obligation to make a full and frank disclosure of my financial circumstances to the Court and each other party. In particular, I have disclosed in this document or in an affidavit filed by me or on my behalf under Rule 6.06(6), all matters I am required to disclose under Rule 6.06.
- (b) The information in the financial statement and any attachments to it which are within my personal knowledge are true. Where I have given an estimate in this financial statement, it is based on my knowledge and is given in good faith. All other information given in this financial statement and any attachments is true to the best of my knowledge, information and belief.
- (c) I have no income, property or financial resources other than as set out in this document or any affidavit filed by me under Rule 6.06(6).

Your signature	Place Date
Before me (signature of witness)	Matthew Shepherd Full name of witness (please print)

- ☐ Justice of the Peace
☐ Notary public
☒ Lawyer
☐ Authorised Staff Member of the Court

This financial statement was prepared by:
☐ the applicant ☐ the respondent ☒ lawyer

Matthew Shepherd
RAM7921757

PRINT NAME AND LAWYER'S CODE

Part B Financial summary

IMPORTANT: As you complete the rest of this form you will be asked to transfer the totals for Items D, G, I-L to this summary

2	A	Your total average weekly income. (THIS IS THE FIGURE AT ITEM 16)	\$	NIL
	B	Your total personal expenditure. (THIS IS THE FIGURE AT ITEM 33)	\$	1,981
	C	Total value of property owned by you. (THIS IS THE FIGURE AT ITEM 44)	\$	993,724
	D	Total gross value of your superannuation. (THIS IS THE FIGURE AT ITEM 45)	\$	164,304
	E	Total of your liabilities. (THIS IS THE FIGURE AT ITEM 55)	\$	NIL
	F	Total of your financial resources. (THIS IS THE FIGURE AT ITEM 58)	\$	NIL

Part C Your employment details

3 What is your current occupation?

Parent and homemaker

4 Are you employed?

☒ No. Go to Part D

☐ Yes. Give details

☐ full time

☐ permanently

☐ on contract

☐ part time

☐ casually

5 What is the name of your employer?

6 What is the address of your employer?

STATE	POSTCODE	PHONE

7 How long have you been employed at this place?

YEARS

MONTHS

DAYS

8 Are you self-employed?

☐ No

☐ Yes

STATE THE NAME OF THE BUSINESS / COMPANY / PARTNERSHIP / TRUST

Part D Your income

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

AVERAGE WEEKLY AMOUNT

9	Total salary or wages before Tax		\$	NIL
10	Investment income (before tax)	INCOME TYPE (eg. rent, interest, dividend) 	\$	NIL
		PAID BY (bank, mortgagor, company, tenant) 		
		INCOME TYPE (eg. rent, interest, dividend) 	\$	NIL
		PAID BY (bank, mortgagor, company, tenant) 		
11	Income from business/ partnership/ company/ trust	NAME OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST 	\$	NIL
		TYPE OF BUSINESS 		
		ADDRESS OF BUSINESS/ PARTNERSHIP/ COMPANY/ TRUST 		
		State Postcode		
12	Government benefits	TYPE OF BENEFIT	\$	NIL
		TYPE OF BENEFIT	\$	NIL
13	Maintenance/ child support	PAID BY Heather Cooke FOR THE BENEFIT OF Stephen Cooke	\$ REQUIRED TO BE PAID \$1,200	ACTUALLY RECEIVED \$ NIL
14	Benefits from employment/ business	TYPE OF BENEFIT	\$	NIL
15	Other income	PAID BY	\$	NIL
		TYPE OF BENEFIT		
16	TOTAL AVERAGE WEEKLY INCOME WRITE THE ITEM 16 TOTAL AT ITEM 2A ON PAGE 2 OF THIS FORM			\$ NIL

Part E Other income earners in your household

- 17 Give the name, age and relationship to you and gross income of each other occupant of your household

	AGE	RELATIONSHIP TO YOU	AVERAGE WEEKLY AMOUNT
NAME			\$ NIL
NAME			\$ NIL
NAME			\$ NIL

Part F Expenses paid by others for your benefit

18	PAID BY Respondent	TYPE OF EXPENSE and house expenses	\$
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Part G Personal expenditure

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

AVERAGE WEEKLY AMOUNT

19	Total income tax		\$ NIL
20	Superannuation	PLAN NAME	\$ NIL
21	Mortgage payments/ rent	NAME OF LENDER/LANDLORD Anticipated rent	\$E 800
22	Rates, unit levies		\$ NIL
23	Other mortgage payment	NAME OF LENDER ADDRESS OF PROPERTY	\$ NIL
24	Other rates, unit levies		\$ NIL
25	Life insurance premiums	TYPE OF POLICY POLICY NO. NAME OF INSURER	\$ NIL
		TYPE OF POLICY POLICY NO. NAME OF INSURER	\$ NIL

PERSONAL EXPENDITURE - CONTINUED

AVERAGE WEEKLY AMOUNT

26	Other insurance premiums	TYPE OF POLICY Based on Merewether house	\$ 20	
		POLICY NO. [REDACTED]		
		NAME OF INSURER [REDACTED]		
		TYPE OF POLICY Family Health Insurance	\$ 62	
		POLICY NO. [REDACTED]		
		NAME OF INSURER BUPA		
27	Motor vehicle registration	REG. NO: DAI VEHICLE MAKE Honda	\$ 15	
28	Hire purchase/ lease agreements	DESCRIBE THE PROPERTY [REDACTED]	\$ NIL	
		NAME OF COMPANY/ PERSON [REDACTED]		
29	Loan repayments	NAME OF LENDER [REDACTED]	\$ NIL	
		TYPE OF LOAN [REDACTED]		
30	Credit card payments	CARD TYPE [REDACTED] Minimum Payment \$ [REDACTED]	\$ NIL	
		NAME OF COMPANY [REDACTED]		
		CARD TYPE [REDACTED] Minimum Payment \$ [REDACTED]	\$ NIL	
		NAME OF COMPANY [REDACTED]		
31	Maintenance payments/ child support	PAID FOR THE BENEFIT OF [REDACTED]	ACTUAL PAYMENT \$ NIL	
		☐ assessment ☐ agreement ☐ order		AMOUNT OF ASSESSMENT, AGREEMENT OR ORDER \$ [REDACTED]
32	Total of all other expenditure		\$ 1,084	
33	TOTAL PERSONAL EXPENDITURE WRITE THIS ITEM 33 TOTAL AT ITEM 2B ON PAGE 2 OF THIS FORM		\$ 1,981	

Part H

Personal expenses you pay for the benefit of others

34

State which of the expenses in Part G are paid by you for other persons

NAME OF PERSON [REDACTED]

GIVE DETAILS [REDACTED]

\$ NIL

NAME OF PERSON [REDACTED]

GIVE DETAILS [REDACTED]

\$ NIL

Part I

Property owned by you

CURRENT VALUE OF YOUR SHARE

35

Home

FULL NAME OF THE REGISTERED OWNERS

Stephen Christopher Cooke and Heather Anne Cooke
(joint tenants)

PROPERTY ADDRESS Unit 1/213 Morgan Street,
Merewether NSW 2291

YOUR % SHARE 50

\$ 875,000

36

Other real estate

PROPERTY ADDRESS [REDACTED]

REGISTERED OWNERS: [REDACTED]

YOUR % SHARE [REDACTED]

\$ NIL

37

Funds in banks, building societies, credit unions or other financial institutions

NAME AND BRANCH BSB Joint WBC Choice Account & BSB	
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke #3193	
CURRENT BALANCE	\$5447

\$ 2,724

NAME AND BRANCH BSB Joint WBC Choice Account & BSB	
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke #5055 (closed)	
CURRENT BALANCE	\$0

\$ NIL

NAME AND BRANCH BSB Joint WBC Offset Account & BSB	
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke #5063 (closed)	
CURRENT BALANCE	\$0

\$ NIL

NAME AND BRANCH BSB Joint WBC Offset Account & BSB	
ACCOUNT HOLDER & NUMBER Stephen Christopher Cooke and Heather Anne Cooke #2594 (closed)	
CURRENT BALANCE	\$0

\$ NIL

38

Investments

NAME AND TYPE OF INVESTMENT Premium Prae Investments Portfolio (ID: SMA00418788) [as at 11 July 2024]	
FULL NAMES OF ALL OWNERS Stephen Christopher Cooke	
NUMBER OF SHARES HELD	YOUR % SHARE 100

\$ 100,000

NAME AND TYPE OF INVESTMENT [REDACTED]	
FULL NAMES OF ALL OWNERS [REDACTED]	
NUMBER OF SHARES HELD	YOUR % SHARE [REDACTED]

\$ NIL

PROPERTY OWNED BY YOU - CONTINUED

39	Life Insurance policies	POLICY TYPE POLICY NO. [REDACTED] [REDACTED]	\$ NIL	
		NAME OF INSURANCE COMPANY [REDACTED]		
		FULL NAMES OF ALL OWNERS YOUR % SHARE [REDACTED] [REDACTED]		
40	Motor vehicle	YEAR [REDACTED] MAKE [REDACTED]	\$ NIL	
		MODEL [REDACTED] REGISTRATION NO. [REDACTED]		
		FULL NAME OF REGISTERED OWNER/S YOUR % SHARE [REDACTED] [REDACTED]		
		YEAR [REDACTED] MAKE [REDACTED]	\$ NIL	
		MODEL [REDACTED] REGISTRATION NO. [REDACTED]		
		FULL NAME OF REGISTERED OWNER/S YOUR % SHARE [REDACTED] [REDACTED]		
41	Interest in a business including a business operated by you as a sole trader, in a partnership or through a proprietary company or a trust	NAME OF BUSINESS [REDACTED]	\$ NIL	
		ADDRESS OF BUSINESS [REDACTED]		
		[REDACTED] YOUR % SHARE [REDACTED]		
		Business type (Mark [X] which applies) ☐ Sole trader ☐ Partnership ☐ Proprietary company / trust		
42	Household contents	Furniture	\$ 4,000	
43	Other personal property	SPECIFY IT equipment/home entertainment	\$ 12,000	
		YOUR % SHARE 100		
		SPECIFY [REDACTED]	\$ NIL	
		YOUR % SHARE [REDACTED]		
		44	TOTAL VALUE OF PROPERTY OWNED BY YOU WRITE THIS ITEM 44 TOTAL AT ITEM 2C ON PAGE 2 OF THIS FORM	

Part J Superannuation

You must attach a completed Superannuation Information Form for each superannuation interest if you are seeking an order for property settlement.

45

Interest in
superannuation

NAME OF SUPERANNUATION FUND 1
Future Super [as at 11 July 2024]

\$ 164,304

TYPE OF INTEREST

- | | |
|--|--|
| ☒ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested
accumulation interest | ☐ Small superannuation
account |
| ☐ Defined benefit interest | ☐ Percentage only interest |
| ☐ Self managed fund | ☐ Approved deposit fund |
| ☐ Eligible annuity | |

NAME OF SUPERANNUATION FUND 2

\$ NIL

TYPE OF INTEREST

- | | |
|--|--|
| ☐ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested
accumulation interest | ☐ Small superannuation
account |
| ☐ Defined benefit interest | ☐ Percentage only interest |
| ☐ Self managed fund | ☐ Approved deposit fund |
| ☐ Eligible annuity | |

NAME OF SUPERANNUATION FUND 3

\$ NIL

TYPE OF INTEREST

- | | |
|--|--|
| ☐ Accumulation interest | ☐ Retirement saving account |
| ☐ Partially vested
accumulation interest | ☐ Small superannuation
account |
| ☐ Defined benefit interest | ☐ Percentage only interest |
| ☐ Self managed fund | ☐ Approved deposit fund |
| ☐ Eligible annuity | |

TOTAL GROSS VALUE OF YOUR SUPERANNUATION
WRITE THIS ITEM 45 TOTAL AT ITEM 2D ON PAGE 2 OF THIS FORM

\$ 164,304

Part K Your liabilities

		AMOUNT OF YOUR SHARE	
46 Home mortgage/s	FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne Cooke Fixed home loan #6802		\$ 299,534
	YOUR % SHARE 50		
	FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne Cooke Rocket Repay home loan #7671		\$ 93,701
	YOUR % SHARE 50		
	FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke and Heather Anne Cooke Rocket Repay home loan #7778		\$ 124,395
	YOUR % SHARE 50		
47 Other mortgages	FULL NAMES OF ALL BORROWERS		\$ NIL
	YOUR % SHARE		
48	Total income tax assessed and unpaid for the last financial year Date due: Select to enter date.		\$ NIL
49	Total income tax assessed and unpaid in previous financial years		\$ NIL
50 Loans	NAME OF LENDER JustFund inc interest		\$ 90,000
	TYPE OF LOAN ☐ overdraft ☒ other (specify) ☐ personal loan <u>Legal expenses</u>		
	FULL NAMES OF ALL BORROWERS Stephen Christopher Cooke		
	YOUR % SHARE 100		
51 Credit/ charge cards	SPECIFY CARD PROVIDER AND TYPE		\$ NIL
	SPECIFY CARD PROVIDER AND TYPE		\$ NIL

52

Hire purchase/
lease

AMOUNT OF YOUR SHARE

NAME OF LENDER

\$

NIL

Date of final payment

Select to enter date.

FULL NAMES OF ALL PERSONS NAMED IN THE AGREEMENT

YOUR % SHARE

YOUR LIABILITIES – CONTINUED

53 Other personal liabilities AMOUNT OF YOUR SHARE

SPECIFY 	\$ NIL
--	--------

FULL NAME OF ANY OTHER LIABLE PERSON

YOUR % SHARE

54 Other personal business liabilities AMOUNT OF YOUR SHARE

SPECIFY 	\$ NIL
--	--------

FULL NAME OF ANY OTHER LIABLE PERSON

YOUR % SHARE

55 TOTAL LIABILITIES

WRITE THIS ITEM 55 TOTAL AT ITEM 2E ON PAGE 2 OF THIS FORM

	\$ NIL
--	--------

Part L Financial resources

56 Interest in any trust or deceased estate AMOUNT OF YOUR SHARE

SPECIFY 	\$ NIL
--	--------

57 Other financial resources AMOUNT OF YOUR SHARE

SPECIFY 	\$ NIL
--	--------

58 TOTAL FINANCIAL RESOURCES

WRITE THIS ITEM 58 TOTAL AT ITEM 2F ON PAGE 2 OF THIS FORM

	\$ NIL
--	--------

Part M

About disposal of property

59

Specify property falling within Rule 6.06(3)(g) disposed of by you or on your behalf in the 12 months before separation and since your separation

Item	How disposed of	Value/ amount received
37 – Account ending #2594	Unilaterally withdrawn by the Respondent	\$ 38,470.58
37 – Account ending #5063	Unilaterally withdrawn by the Respondent	\$ 178,201.51
37 – Account ending #7778	Unilaterally withdrawn by the Respondent	\$ 163,967.6
37 – Account ending #2594	Unilaterally withdrawn by the Respondent	\$ 3,920
37 – Account ending #5055	Unilaterally withdrawn by the Respondent	\$ 4,102

Part N

Orders for maintenance, child support, financial enforcement

Complete and attach this page only if the application is for orders for maintenance for yourself, the other party or your children or child support or financial enforcement

60

Average weekly expenses

NOTE: GIVE WEEKLY AMOUNTS IN WHOLE DOLLARS. IF THE AMOUNT FOR AN ITEM IS NIL, WRITE 'NIL'. IF YOU CAN ONLY GIVE AN ESTIMATE INSERT THE LETTER 'E' BEFORE THE AMOUNT STATED

ITEM	TOTAL	FOR YOU	FOR CHILDREN (IF APPLICABLE)	OTHER ADULTS (IF APPLICABLE)
Food	\$ 300	\$ 150	\$ 150	\$
Household supplies	\$ 20	\$ 20	\$	\$
House repairs	\$ NIL	\$ NIL	\$ NIL	\$ NIL
Gas	\$ 20	\$ 20	\$	\$
Electricity	\$ 60	\$ 60	\$	\$
Internet	\$ 25	\$ 25	\$	\$
Telephone	\$ 16	\$ 16	\$	\$
Motor vehicle				
petrol	\$ 92	\$ 92	\$	\$
maintenance	\$ 10	\$ 10	\$	\$
Fares/ car parking	\$ 10	\$ 10	\$	\$
Clothing and shoes	\$ 60	\$ 30	\$ 30	\$
Children's activities	\$ 90	\$	\$ 90	\$
Child minding	\$ 189	\$ NIL	\$ 189	\$ NIL
Medical, dental and optical (not including health insurance premiums)	\$ 70	\$ 55	\$ 15	\$
Entertainment/ hobbies	\$ 30	\$	\$ 30	\$
Holidays	\$ NIL	\$ NIL	\$ NIL	\$ NIL
Education expenses, including fees and levies	\$ 15	\$	\$ 15	\$
Chemist/ pharmaceutical	\$ 32	\$ 17	\$ 15	\$
Gardening/ lawn mowing	\$ NIL	\$ NIL	\$ NIL	\$ NIL
Cleaning (house/ pool)	\$ NIL	\$ NIL	\$ NIL	\$ NIL
Repairs – furnishings and appliances	\$	\$	\$	\$
Dry cleaning	\$ NIL	\$ NIL	\$ NIL	\$ NIL
Books and magazines	\$ 5	\$	\$ 5	\$
Gifts	\$ 20	\$	\$ 20	\$
Hairdressing, toiletries	\$ 20	\$ 10	\$ 10	\$
Other necessary commitments (specify)	\$	\$	\$	\$
TOTAL	\$ 1120	\$ 515	\$ 569	\$ NIL

Part O

Additional information

You should set out here or on an additional page any item that you may not be able to include in any section of the document. Please include the Part and paragraph number that it continues from.

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This application was prepared by ☐ applicant/s ☒ lawyer
☐ respondent/s

Matthew Shepherd

RAM7921757

PRINT NAME AND LAWYER'S CODE

Approved by Chief Justice/Chief Judge pursuant to Rule 15.21

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